



File No.: EXP202408376

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 18, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202408376

Sanctioning Procedure No. PS/00346/2024

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 24, 2024. The complaint is directed against APARTAMENTOS BUENAVISTA HOME, located at Av de Galdar, Buenavista building, (...) in San Bartolomé de Tirajana.

The reasons for the complaint are as follows:

"From May 10 to 12, 2024, we stayed at the Buenavista Home apartments, located on Avenida de Galdar, Buenavista building (...) in the municipality of San Bartolomé de Tirajana, province of Las Palmas de Gran Canaria: C.C.C. with ID ***NIF.1, D.D.D. with ID ***NIF.2, E.E.E. with ID ***NIF.3, F.F.F. with ID ***NIF.4 and I, B.B.B. with ID ***NIF.5 (the Airbnb reservation receipt is attached).

Due to this accommodation and once the reservation was made, on May 9, 2024, we were requested electronically to attach images of our IDs (the present document includes screenshots in which we are asked to provide copies of the IDs), considering by the person filing the following complaint that this action flagrantly contravenes the applicable provisions regarding data protection under our legislation." In light of the above, it is considered that there has been inappropriate processing of personal data that exceeds the provisions of Article 5.1.C of the GDPR, as the data collected is not necessary for the specific purpose of the processing.

It is requested through this document that the processing of these personal data be eliminated, as the purpose for which they were obtained has concluded in accordance with the provisions of Article 17 of the RGLPD."

A document of the reservation made and the WhatsApp messages exchanged with the manager of the apartment and one of the 5 guests where they are requested to send copies of the identity documents of the guests of the contracted accommodation to be able to check in online is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on June 7, 2024, this complaint was forwarded to the entity BUENAVISTA HOME S.L., after conducting a search for the commercial name and NIF of the same, as these data were not included in the complaint - for them to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out by electronic notification to the unique electronic address of that entity and by postal notification addressed to the address indicated in the complaint, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was delivered electronically to them on June 11, 2024, as evidenced by the acknowledgment of receipt in the file.

On June 11, 2024, a response letter was received at this Agency from the entity BUENAVISTA HOME S.L., stating that they do not have a headquarters in the municipality referred to in the complaint and that they are not the managing entity of the Buenavista Home apartments in San Bartolomé de Tirajana, as there is a coincidence in the name of those apartments with the name of their company.

THIRD: On June 13, 2024, the forwarding of the complaint was sent again to APARTAMENTOS BUENAVISTA HOME, addressed to the postal address referred to in the complaint, for them to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD).

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, was delivered to them as indicated.

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Public (hereinafter, LPACAP), was received on June 28, 2024, at the postal address, as evidenced by the acknowledgment of receipt in the file.

FOURTH: On July 10, 2024, this Agency received a letter from A.A.A., who identifies as the individual renting the apartment referred to by the claimant on the Airbnb platform in a personal capacity, with no company BUENAVISTA HOME established, which is the name given to the apartments on the platform. Regarding the facts subject to the claim, he states the following:

- That he is not a commercial company, but an individual renting his vacation home, and due to his lack of knowledge and capacity, he is not in a position to provide most of the documents requested in the transfer letter.
- That all management is carried out through third-party platforms.
- That he has contracted the management of communications with tenants with the entity "Checkin Soluciones Digital, S.L.," with which he has contacted and they have indicated the reasons why they believe that the request for a copy of the ID is legal.
- He considers that the request for a copy of the ID is pertinent, appropriate, and limited to verifying the accuracy of the data, proceeding to delete the copy of the ID once the information has been verified.
- That being a remote communication, without in-person reception - in which he states that he understands that the Agency controls the collection of the ID by the establishments - in the case of his tourist apartment, where there is no in-person reception, he requires the ID to be able to ascertain the accuracy of the data provided by the claimant, as he believes that this control is necessary to comply with the order to communicate the information of the guests to the Security Forces and Bodies as a means of preventing fraud.
- He commits to not keeping or storing it longer than necessary to verify such identities.

FIFTH: On September 4, 2024, a Diligence is issued to state that as of today, it has been verified that the entity "CHECK IN SOLUCIONES DIGITALES S.L." with NIF B21579990 offers on its website with URL: Automate the check-in process at your hotel (chekin.com), the possibility of contracting an Application called "Checkin" by the holders of accommodations, whose privacy policy is attached as Annexes I and II, and which establishes as a requirement the provision of an image of both sides of the guest's identity document as a method of identity verification, without which it is not possible to complete the online registration process, according to the procedure described in Annex III.

- Annex I. Privacy policy for the host, obtained from the URL: Privacy policy | CheKin
- Annex II. Privacy policy for the guest (generic for accommodations), obtained from the URL: Generic privacy policy for accommodations - Chekin.
- Annex III. Online check-in procedure and identity verification method for guests. Online check-in for Tourist Accommodations | Chekin

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

The data contained in the image of the ID on both sides are considered personal data, the processing of which is subject to the regime provided for in the GDPR, as well as its implementing provisions, in accordance with the provisions of Article 4.1 and 4.2 of the GDPR, which states the following:

"Article 4 Definitions

For the purposes of this Regulation, the following definitions shall apply:

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1) "personal data": any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or several elements specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction; (...)

In the present case, it is noted that the defendant has carried out processing of personal data of 5 individuals who stayed in their vacation home, from whom they have requested personal data in order to register their accommodation, through the online check-in process. Collecting, compiling, and storing, in this case, such personal data are undoubtedly operations of processing personal data, as defined in Article 4.2 of the GDPR.

The defendant entity is responsible for the processing of personal data carried out in the present case, since as the owner of the accommodation (rented tourist housing), it decides on the purposes and means of processing the personal data of its guests, in accordance with the provisions of Article 4.7 of

the GDPR, which states the following:

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States (...)"

In the present case, the defendant states that it has contracted the management of communication with guests to the entity "CHECK IN SOLUCIONES DIGITALES, SL." And according to the content of the Diligence issued on September 4, 2024, the contracting of the management of "communication with guests" referred to by the defendant implies that the contracted entity is responsible for requesting the necessary information/documentation for the provision of the accommodation service, since it has been verified that the aforementioned company provides a comprehensive service to those it calls "hosts," who wish to rent their property, through an application and web platform called "Checkin," in which guests must complete the self check-in registration.

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However, even in cases of contracting the use of the aforementioned application/platform with said company, the so-called "guest privacy policy" that is available on the Checkin website (which is the generic policy for accommodations regarding the personal data provided by guests), which is processed as Annex II, clearly states that the owner of the accommodation will be responsible for their personal data:

"1. General

To enable the use of the Chekin application and the other platforms where Chekin services are offered, it is necessary to be a registered user of the same and to accept the privacy rules detailed below for this purpose, in accordance with those established in the European Data Protection Regulation (Regulation 2016/679) and the specific laws of the country and region where the data subject to be processed is located.

By using Chekin services, and consequently accepting its privacy policy, you agree that the owner of the accommodation, responsible for your personal data, stores and processes the personal data you provide us in order to use the platform. In any case, the guest is informed that the following treatments are carried out based on the information provided."

Consequently, if it is confirmed during the investigation that the infringement attributed by this agreement occurred, the presumed responsible party to whom administrative responsibility can be demanded for the alleged breaches committed is the owner of the apartments, and responsible for the processing of the personal data provided by their guests during the online check-in process, D. A.A.A., in accordance with the provisions of Article 70.1 a) of Organic Law 3/2018, of December 5, on the protection of personal data and guarantee of digital rights (hereinafter, LOPPDD):

"Article 70. Responsible parties.

1.

Those subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law are: a) The responsible parties for the treatments. b) The processors of the treatments. c) The representatives of the responsible parties or processors not established in the territory of the European Union. d) The certification entities. e) The accredited entities supervising the codes of conduct. (...)"

IV

Unfulfilled obligation. Excessive data processing

The processing of personal data of individuals who book accommodation in hospitality establishments (referred to as "guests") must be governed by the principles outlined in Article 5 of the GDPR.

It is noteworthy, due to its relation to the present case, the so-called "Principle of lawfulness and transparency" and "Principle of data minimization" provided in the first section of the same, letters a) and c), respectively, which state:

“Article 5 Principles relating to processing

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1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject ("lawfulness, fairness, and transparency").

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization").

Furthermore, Article 5.2 of the GDPR states that: "The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it."

In this case, it is necessary to examine whether the party has a lawful basis for processing the personal data contained in the copy or image of the identity document of the guests who register in the vacation home they rent as a private individual seasonally on various platforms (which has the nature of a hospitality establishment), or whether, on the contrary, requiring such a copy or image of the document constitutes excessive and unnecessary data processing.

Article 6 of the GDPR, relating to "Lawfulness of processing," establishes in its paragraph 1 the circumstances under which the regulation allows the processing of personal data of a third party, referred to as "lawful bases." If none of these circumstances or conditions are met, the processing will not be legitimate or considered lawful under the GDPR:

"1. Processing shall be lawful only if it meets at least one of the following conditions:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person.

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

In the present case, the complaint is filed against the data controller in a private capacity of a vacation or tourist home that is rented seasonally through various platforms, including Airbnb, under the name BUENAVISTA HOME, for having established an online booking system in which it is required to provide...

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a copy of the ID of the guests is mandatory in order to finalize the reservation for their guests. This was the case for the claimant and the other 4 guests who claim to have stayed in said apartment between May 10 and 12, 2024, and who had to provide a copy of their ID as a necessary requirement to attach it to the application used for "self check-in." The claimant provides evidence that the requirement for

such copies or images of the ID on both sides was made: (i) initially by sending a link via email to the guests so that they could include an image of the ID when performing the “self check-in online,” a link that directed them to the check-in application contracted by the owner of the apartment; (ii) and subsequently, it has also been evidenced that such a copy was requested through WhatsApp messaging on May 9, 2024, from one of the guests who had not attached the image of her ID, by a person claiming to act on behalf of the apartments, who identified herself as G.G.G., stating that this was a requirement to finalize the online check-in process and access the accommodation.

The defendant confirms in its writing of July 10, 2024, that, indeed, such a copy or image of the ID was required from the guests of the apartment referred to in this file, as is routinely done with all guests, and that this is a condition of the accommodation, whose check-in is online, given that there is no physical reception. It also states that it has contracted the management of communications with tenants with the entity “Checkin Soluciones Digital, S.L.,” with which it has contacted and they have indicated the reasons why they believe that the request for a copy of the ID is legal and necessary. The main controversial issue of this procedure is to determine whether the holders of the hospitality activities are authorized to require the delivery of a copy or image of the ID.

Regarding this issue, the defendant states the following in its response to the transfer of July 10, 2024:

- It states that “In this case, I have the communication management of tenants contracted through the application of 'Checkin Soluciones Digitales S.L.' Upon receiving this communication from the AEPD, I contacted them, and they informed me that:

“Our data protection agency has confirmed to us that in this case it is legal to request the photos and has given us two arguments that could be used for this claim: (...)

1. Argue the necessity of requesting the ID to verify the identity of the guests based on fraud prevention.

2. Indicate in the response to the Agency that the IDs are not retained beyond the strict verifications to know their real identity. That is, they are deleted after the identity of the guest has been verified.

They have also indicated to us the two reasons why the request for those images is legitimate:

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3. When performing an online check-in, the request for the ID card of the guests is necessary as it must verify the identity of the individuals who will be staying at a tourist establishment. That is to say, just as a person checks into a hotel and is asked for their ID to verify their identity. In this case, it is also needed for the prevention of fraud.

4. A very different issue is the retention of photographs of the guests' ID cards. In this regard, it is not possible to store the guests' ID cards once the user data has been obtained for communication to the State Security Forces and Corps.

"I hope I have helped you."

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After literally transcribing the alleged response received from the contracted company (a copy of which is not attached), the respondent interprets what the company in charge of processing wants to convey and makes the following considerations based on it:

"I understand that since it is all a remote communication, they request, as they say, the photograph of the ID card to ensure that the information they provide is for the prevention of fraud, committing to not keep or store it beyond the strictly necessary time to verify such identities.

Therefore, I consider that the request for data has been correct as it is an appropriate, relevant, and limited way to ascertain the veracity of the data provided by B.B.B., proceeding to delete the copy of the ID card once verified.

It makes sense that the Agency pursues the collection of the ID card in cases where there is an in-person reception where the veracity of the data can be verified in person, a typical example of this being hotels, but in the case of my tourist apartment, this is not the case, so this control is necessary to comply with the order to communicate information about guests to the Security Forces and Corps."

In light of the statements made and the documentation presented by both parties, it is necessary to analyze whether the respondent, as the owner of a property where a lodging activity is carried out, has in this case a legal basis under Article 6.1.c) of the GDPR, which enables them to process the personal data of the "guest" in compliance with a legal obligation enforceable against the data controller, in the terms alleged by them.

The regulations governing the guest registration books and entry reports in hospitality establishments, as well as the obligation to communicate the information contained in the registration sheets to the State Security Forces and Corps, are primarily constituted by Organic Law 4/2015, of March 30, on the protection of citizen security (hereinafter, LO 4/2015), and Royal Decree 933/2021, of October 26, which establishes the obligations of documentary registration and information of individuals or legal entities that engage in lodging and motor vehicle rental activities (hereinafter, RD 933/2021).

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First of all, it should be noted that the rental activity carried out privately by the respondent is included within the scope of application of this regulation, which is directed at individuals or legal entities that engage in lodging activities. For these purposes, Article 2 of RD 933/2021 establishes the following: "Article 2. Definitions.

For the purposes established in this royal decree, the following are considered:

1. Lodging activities: those carried out, whether professionally or not, with the aim of providing, in exchange for a price, consideration, or compensation, accommodation or space for overnight stays to individuals, with or without other complementary services. In any case, the following activities are included in this definition:

- a) Those carried out by commercial establishments open to the public integrated into this sector according to the regulations issued by the competent administration. This concept includes hotels, hostels, guesthouses, rural tourism establishments, or similar.
- b) Those carried out by campsites and areas for parking motorhomes, regardless of their ownership or usage regime, apartments, bungalows, and other similar tourist accommodations.
- c) Those of tour operators that provide intermediation services between companies dedicated to lodging and consumers.
- d) The activity of digital platforms dedicated, for a fee or free of charge, to intermediation in these activities via the internet, whether or not they provide the underlying service subject to mediation, as long as they offer services in Spain.

2. Activities of renting motor vehicles without a driver: (...)

3. Obligated subjects: individuals or legal entities that develop or mediate in the performance of the described activities."

Article 24 of LO 4/2015 states in its first section the following:

"Individuals or legal entities that engage in activities relevant to citizen security, such as those of lodging (...) shall be subject to the obligations of documentary registration and information in the terms established by the applicable provisions."

These are currently established by the aforementioned RD 933/2021, to which the respondent refers, with Annex I. a), in its section 3, setting forth the data of the guests whose collection is mandatory to include in the so-called "Registration Sheet" that the entity responsible for the hotel must transfer to the Security Forces and Corps.

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of the State, when it comes to professional hospitality establishments. Specifically, the following data

from the traveler is legally required:

- a) Name.
- b) First surname.
- c) Second surname.
- d) Gender.
- e) Identity document number.
- f) Document support number.
- g) Type of document (DNI, passport, TIE).
- h) Nationality.
- i) Date of birth.
- j) Place of habitual residence.– Complete address.– Locality.– Country.
- k) Landline phone.
- l) Mobile phone.
- m) Email address.
- n) Number of guests.
- o) Relationship between the guests (in the case that any are minors)."

Consequently, according to the provisions of this regulation, it is inferred that it is not mandatory to collect, register, or communicate to the competent authorities the image, photocopy, or complete image of the identity document of each traveler, but only some of the data contained therein such as: name and surnames, identification number, support number, type of document (DNI; passport, etc.), nationality, and date of birth.

It should be noted that the image or photocopy of the traveler's DNI (on both sides), passport, or other identity verification documents contains personal data that exceeds those required by this regulation, such as: the image or face of the traveler, the equipment number, or the names of the traveler's parents, for which there is no legal obligation to collect, register, and communicate, according to the aforementioned regulation. All of these would be personal data whose processing cannot be justified under the lawful basis of article 6.1.c) of the GDPR, constituting excessive processing that is contrary to the principle of data minimization provided for in article 5.1.c) of the GDPR.

In this case, the respondent acknowledges that its online reservation process required the claimant and the other 4 travelers to provide such a copy or image of the DNI, as is usually required from other clients, which implies an acknowledgment that it is processing personal data that exceeds what is necessary for compliance with that legal obligation.

It should be clarified that article 4.3 of RD 933/2021 states: "The forms and sheets will be provided by the accommodation or vehicle rental establishment, which will be responsible for the accuracy of the data recorded in them, so that they match the documents or systems that verify the identity of the persons, which must be exhibited or provided by the users of these services."

However, the obligation to verify the accuracy of the data provided for in article 4.3 of RD 933/2021 can be fulfilled without the need to request the delivery or scanning of such a copy or image, as there are other equally valid alternatives that allow this verification to be carried out reliably.

Thus, in conclusion, it should be noted that there is no lawful basis in this case to require the guest to attach such a copy/image of the DNI to an application, and the property owner contracting the accommodation should seek alternative check-in methods that allow compliance with the aforementioned regulation without the need to request and store the image of the identity document of its guests.

In this case, the claimant provides the WhatsApp conversation held between one of the guests (E.E.E.) and the person identified as the manager of the vacation home (G.G.G.), in which she requests to attach both sides of the DNI to the application, offering to send it herself (the underlining is ours):

- "Hello, good afternoon E.E.E., I am G.G.G. and I manage the vacation home Buenavista Home... we have not sent you the link for the lock and keys of the house since the online check-in application is missing a DNI to attach, and it is precisely yours... have you had any problem attaching it or have you not been able to (...)
- Let me check. I thought I had filled in all the fields. 20:36h

Now the information for the number and type of identity document and date of issue is complete.

20:44h

- And did you attach the front and back of the DNI? 20:45h

- I understand that the data you need are the following: number and type of identity document, date of issue, name and surnames, gender, nationality, phone number, check-in date, and length of stay, and the address of the guests. 20:45h

- Yes, that is correct, (...). 20:52h

- Password by Shidix. Dear guest,

Thank you for staying with us. We remind you that the entry to your

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Check-in will be from 9:00 AM and check-out from 11:00 AM.

You can access your accommodation in the following ways that are indicated to you (...). 21:16H.

- We have already sent you the EKeys link (both for the portal and for the accommodation so that...

(END OF SUBMITTED CONVERSATION)."

Well, from the messages provided by the claimant, the diligence issued on September 9, 2024, regarding the content of the application contracted by the defendant, and the statements made by both parties, the following evidence emerges:

- The defendant, owner of the "Apartamento Buenavista Home," decided to contract the entire management of clients, including the online check-in process, with the company "CHECK IN SOLUCIONES DIGITALES, S.L," which provides "hosts" who contract it and "guests" who will stay with an application called "checkin."

- According to what is stated on the website of the contracted company, this application has various modalities that allow combining online check-in with in-person check-in, but the defendant chose the complete online registration modality without in-person reception, as deduced from the WhatsApp messages provided by the claimant, in which an automatic link is sent that acts as a key to the apartment when the guest correctly completes the online check-in.

- The responsible party and in charge of the processing acknowledge that the aforementioned application requires guests to attach an image or copy of their ID to complete the online registration process in order to prevent fraud and comply with their "obligation to verify the identity of the guests" and communicate the data required by regulations to the State Security Forces and Corps, which already implies exceeding the personal data required by regulations and violating the Principle of Article 5.1.c) of the GDPR.

However, in this case, there is also evidence that the procedure contracted by the defendant to manage the online check-in of their apartment is configured so that if the guest does not provide the document in the application, a WhatsApp message is sent to the number they have provided by someone acting on behalf of the apartment (in this case, G.G.G.), in which the guest is requested to attach a copy of their ID on both sides to the online check-in application. This increases the severity of the violation of the Data Minimization Principle of Article 5.1.c) of the GDPR, as it implies that the procedure is designed to store and use such excessive images, in addition to the application, on the mobile device of the person/company sending the message.

Thus, in the submitted messages, it is confirmed that: (i) the sender of the message, "G.G.G.," acted following instructions from the data processor, CHECK IN, as it identifies itself as the managing entity of C/ Jorge Juan, 6

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apartment, has access to the guest's phone number, and to the information that has been registered in the check-in application, and guides the guest on how to complete it and finalize the registration

process; (ii) and it is also reflected that the CHECK IN interlocutor even offers to insert the image of the guest's ID themselves if the guest prefers to send the image via WhatsApp messaging.

It should be noted that in this case, there is no evidence that the guest to whom the messages were sent ultimately sent a copy of their ID via WhatsApp to the apartment manager, since following the manager's message that states: "Yes, that is correct, but the system requires us to take a photo of the front and back of your ID in order to send it to the Hospitality at 20:52H," there follows an automatic message sent by "Password by Shidix" with the keys and link to access the property at 21:16H.

Rather, it can be deduced from the conversation that the guest was completing the online check-in while the conversation was taking place, and that they proceeded to attach both sides of their ID after receiving the message at 20:53 hours, subsequently receiving the "EKeys" link that allowed them to access the property at 21:16H.

However, the mere offer for the guest to send the image of the ID via message to the interlocutor of the CHECK IN company means that the contracted procedure allows this possibility of requesting and receiving the image via messaging and inserting it into the application, and therefore, it is designed to permit it. And we must not forget that the design of the processing is considered an operation of processing according to the jurisprudence of the Court of Justice of the European Union.

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On the other hand, it should be noted that according to the privacy policy of the Checkin guest provided as Annex I, it states that the data is stored for a period of 3 years. And it does not refer in any case to its automatic deletion, as the respondent claims.

"4. How long is the information stored?"

In general, we store the information for as long as necessary to carry out the different treatments, and at least, in accordance with tourism regulations, for a period of 3 years.

Therefore, there is evidence that the respondent, who is responsible for processing the personal data of guests renting their property, decided to contract the use of an application that required providing a copy of the ID to finalize their online registration; and that if it is not provided at the guest's initiative, it is configured for the contracted company to request it via a message to the phone number indicated by the guest. And the image of that ID, obtained to verify the guest's identity, is kept for a period of 3 years.

It is their obligation, by application of the Principle of Proactive Responsibility of Article 24 of the GDPR, to have informed themselves and examined all existing alternatives and applications in the current market that allow for online check-in without violating data protection regulations, and at the same time, to comply with their legal obligations to communicate to the Security Forces and Corps. Given the concurrent circumstances, it is understood that the requirement to provide a photocopy or image of the traveler's identity document constitutes an excessive processing of personal data for which the hospitality establishment is authorized according to the GDPR, since these are inadequate, irrelevant, and unnecessary for the specific purpose of the processing in question (check-in and check-out of guests).

Consequently, in accordance with the available evidence at the time the procedure is opened, and without prejudice to what results from the instruction, the aforementioned facts could constitute a violation by the respondent of the provisions of Article 5.1.c) of the GDPR, which encompasses the Principle of Data Minimization.

V

Classification and qualification of the infringement

The known facts could constitute an infringement, attributable to the respondent, of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Grounds, which, if confirmed, could imply the commission of the infringement classified in Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states that:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

In this regard, the LOPDGDD, in its Article 71 establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 of the LOPDGDD indicates:

“Article 72. Very serious infringements.

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“1. Based on the provisions of Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year statute of limitations for substantial breaches of the articles mentioned therein, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

VI

Proposal for Sanction

The violation of Article 5.1.c) of the GDPR, as provided in Article 83.5 of the GDPR, may be sanctioned with a fine of up to 20 million euros, at most, since the responsible party is a natural person.

The fine must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

Taking into account the aforementioned graduation criteria, in light of the facts under review, it is considered that the sanction that could correspond in the event of confirming the occurrence of the aforementioned infringement would be an administrative fine of €1,000 (ONE THOUSAND EUROS).

VII

Corrective Powers

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

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The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In such case, in the resolution that is adopted, this Agency may require the entity being claimed against to demonstrate within 2 months from the notification of the resolution the following:

-

To have modified its registration system so that the provision of a copy or image of the identity document of guests is not configured as a necessary requirement for accommodation.

-

To have deleted/erased the images/copies of the identity documents that have been collected up to that moment.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

I

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with NIF (...), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO APPOINT H.H.H. as the instructor and I.I.I. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by

the claimant and its documentation, as well as the documents obtained and generated by the General Subdirector for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided for in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of that regulation, an administrative fine of 1,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to A.A.A., with NIF (...), granting a hearing period of ten working days for them to make allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article

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64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 800.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 600.00 euros. In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or waiver of any administrative action or appeal against the sanction.

For these purposes, in the event of opting for either of them, you must send to the General Sub-Directorate of Data Inspection an express communication of the withdrawal or waiver of any administrative action or appeal against the sanction indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (800.00 euros or 600.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Sub-Directorate of Inspection along with the express communication of the withdrawal or waiver of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On November 11, 2024, the respondent has proceeded to pay the sanction in the amount of 600 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the waiver of any administrative action or appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: In the Initiation Agreement transcribed above, it was indicated that, if the infringement is confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202408376, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution, within 2 months from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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